

2	Doe #1 F.H. vs. Roe 1 2022-01299995	Motion for Summary Judgment and/or Adjudication Defendant General Council of the Assemblies of God's (General Council) motion for summary judgment is GRANTED. 1st, 2nd, and 7th causes of action for "sexual abuse of a minor," intentional infliction of emotional distress, and battery. General Council has met its initial burden to show the first, second, and seventh causes of action for "sexual abuse of a minor," intentional infliction of emotional distress (IIED), and battery have no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850-851 [same].) Both the first and seventh causes of action for "sexual abuse of minor" and battery are based on the perpetrator "Darryl's" sexual abuse of plaintiff John Doe #1 F.H, and defendants' alleged liability for the same based on a (1) vicarious liability and (2) ratification theory. (See FAC ¶¶ 35-38, 81-86.) The second cause of action for IIED is similar; it too is based on the perpetrator's sexual abuse of plaintiff (FAC ¶ 41), and alleged against defendants based on a ratification theory (id. ¶ 42). General Council has met its initial burden to show that plaintiff will not be able to prevail on any of these causes of action under a vicarious liability theory because (1) the perpetrator was not an agent/employee of General Council, and (2) sexually abusing a child is not within the course and scope of a youth leader's agency or employment with a church/religious organization. (See Mary M. v. City of Los Angeles (1991) 54 Cal.3d 202, 208 [vicarious liability]; see CACI No. 3701 [vicarious liability elements]; Rita M. v. Roman Catholic Archbishop (1986) 187 Cal.App.3d 1453, 1461 (Rita M.).)
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		General Council's evidence shows plaintiff was allegedly abused by perpetrator "Darryl" while he was participating in the Royal Rangers youth group program at his church, the Walnut Valley Assembly of God Church of La Puente (Walnut Valley), and that the perpetrator was a youth leader/instructor of this Royal Rangers program at Walnut Valley. (See Def. SSMF Nos. 18, 35-37, 81.) General Council's evidence shows that it is an entirely separate legal entity from Walnut Valley; it was not involved in and had no authority or control whatsoever over the Royal Rangers program at plaintiff's church or any of the agents/employees of that program or church; and that did not otherwise have any agency/employment relationship with the perpetrator at any time. (See CACI No. 3701 [vicarious liability elements, respondeat superior requires an agency/employment relationship]; see also Def. SSMF Nos. 1-17, 20-31; Kesner Decl. ¶¶ 4, 6-15, 17-23, 27-30, Exs. 1, 2.) General Council has also shown that it cannot be held vicariously liable for the perpetrator's torts because the sexual abuse of a minor does not fall within the course and scope of a youth leader's agency/employment with a church/religious organization. (Rita M., supra, 187 Cal.App.3d at p. 1461; Jeffrey E. v. Central Baptist Church (1988) 197 Cal.App.3d 718, 722, 724 (Jeffrey E.) ["Sexual molestation is in no way related to [teaching Sunday school...], or any of the other tasks that are required of a [church Sunday school teacher or member].' "]; see Def. SSMF Nos. 18, 24, 35-37, 81.) "It would defy every notion of logic and fairness to say that sexual activity between a [minor child] and a [youth leader] is characteristic of the [religious organization's enterprise]...." (Rita M., at p. 1461.) "Because sexually abusing a [child] is not within the course and scope of employment of a [church] employee, a [church organization] is not vicariously liable for the abuse itself," although it may be liable under other theories, for example, negligent hiring, retention, or supervision. (Roe v. Hesperia Unified School District (2022) 85
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	Cal.App.5th 13, 25; see Rita M., at p. 1461 [Archbishop not liable under respondeat superior for sexual abuse of minor by priests]; Jeffrey E., supra, 197 Cal.App.3d at p. 724 [church not liable under respondeat superior for molestation of student by Sunday school teacher]; see also John R. v. Oakland Unified School Dist. (1989) 48 Cal.3d 438 [school district not vicariously liable under respondeat superior for molestation by teacher]; Alma W. v. Oakland Unified School Dist. (1981) 123 Cal.App.3d 133, 139-142 [school district not vicariously liable for rape of student by janitor].) General Council has also met its initial burden to show that the first, second, and seventh causes of action fail to the extent they are alleged against it under a ratification theory. (See C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1110-1111 [ratification]; Samantha B. v. Aurora Vista Del Mar, LLC (2022) 77 Cal.App.5th 85, 109 [same].) As discussed above, General Council has submitted evidence showing that the perpetrator was not an agent/employee of General Council at any time, and that it was not involved in and had no authority or control whatsoever over the Royal Rangers program at plaintiff's church or any of the agents/employees of that program or church, and thus could not have authorized perpetrator's activities. (See Def. SSMF Nos. 3, 5, 8, 15-17, 20-31.) General Council has also submitted evidence showing it had no knowledge of the alleged sexual abuse at any time prior to this lawsuit, and therefore could not have ratified it. (See Def. SSMF Nos. 32-34, 83-84.) This shifts the burden to plaintiff to produce evidence demonstrating a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2) [burden]; see Aguilar, supra, 25 Cal.4th at pp. 850-851.) Plaintiff has failed to meet this burden. As to vicarious liability, plaintiff has not produced any evidence suggesting that childhood sexual abuse is characteristic of the activities of the General Council's enterprise such that
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	General Council may be vicariously liable for the abuse itself. (See Pl. Resp. to Def. SSMF Nos. 18 [undisputed that the perpetrator was Darryl, who was a group leader of the Royal Rangers youth group at plaintiff's church], 35-37, 81 [undisputed]; Pl. Addl. MF Nos. 1-2, 6-9.) This alone causes the first, second, and seventh causes of action to fail to the extent they rely on a vicarious liability theory, as a principal/employer is only vicariously liable for an agent/employee's torts committed within the course and scope of the agency/employment. (Mary M., supra, 54 Cal.3d at p. 208; Rita M., supra, 187 Cal.App.3d at p. 1461; see Roe v. Hesperia Unified School District, supra, 85 Cal.App.5th at p. 25.) Further, even if plaintiff had somehow shown that sexual abuse is characteristic of General Council's enterprise (which he has not), plaintiff has also failed to produce evidence showing the perpetrator was an agent or employee of the General Council. As briefly noted above, General Council's evidence shows it is a separate legal entity from its affiliated churches, including Walnut Valley; that the affiliated churches are completely self-governing, sovereign, and autonomous; and that General Council does not, and cannot, oversee, control, or otherwise interfere with any of the operations of a church, including a church's Royal Rangers youth group program. General Council also painstakingly distinguishes between its Royal Rangers division/department—which produces Royal Rangers curriculum that any church (including churches not affiliated with the General Council) may purchase and use in any manner it chooses—versus the Royal Ranger groups/programs the churches implement and run. In doing so, General Council emphasizes that its Royal Rangers division has zero oversight, control, or authority over any Royal Rangers groups/programs at any church affiliated with or outside its fellowship, and that all Royal Rangers groups are the independent province of the local church. (See Def. SSMF Nos. 1-17, 20-31; Kesner Decl. ¶¶ 4, 6-15, 17-23, 27-30, Exs. 1, 2.)
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		Completely ignoring this critical distinction, plaintiff repeatedly claims that “Royal Rangers was a subdivision within General Council’s organizational structure” and that “therefore members of the Royal Rangers are also members of the Defendant,” citing to certain portions of the deposition transcript of General Council’s person most knowledgeable, Brad Kesler, attached as exhibit 1 to the declaration of plaintiff’s counsel. (See, e.g., Pl. Resp. to Def. SSMF Nos. 10, 12-17, 22, 24, 29-30, 47-49, 54-55; West Decl. ¶ 3, Ex. 1.) Nothing in this exhibit, however, reveals a triable issue of material fact; Mr. Kesler’s deposition testimony is wholly consistent with General Council’s assertions. (See West Decl. at Ex. 1; see also Kesler Decl. ¶¶ 4-30; Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 876 [“The opposing party’s responses to the separate statement must be in good faith, responsive, and material”; the court “should ... not hesitate to disregard attempts to game the system by the opposing party claiming facts are ‘disputed’ when the uncontroverted evidence clearly shows otherwise.”].) Plaintiff also “disputes” General Council’s assertions that the perpetrator was never a member, volunteer, employee, or agent of the General Council, by claiming “Darryl was a volunteer of the Royal Rangers program which is not a separate legal entity, but a division of the Royal Rangers,” and citing to “Defendant’s Ex. C, SPROG [special interrogatory] No. 33.” (Pl. Resp. to Def. SSMF Nos. 25-28.) But there is no such “SPROG No. 33” or any response thereto. (See Sikkema Decl. at Ex. C [attaching plaintiff’s responses to General Council’s first set of special interrogatories]; see also Champlin/GEI Wind Holdings, LLC v. Avery (2023) 92 Cal.App.5th 218, 226 (Champlin) [opposition separate statements must cite to facts and evidence for the evidence to be considered by the court].) Plaintiff has therefore failed to meet his shifted burden to produce evidence demonstrating a triable issue of material fact as to whether the perpetrator was an agent/employee of
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		General Council for purposes of vicarious liability. Plaintiff has also failed to produce any evidence of ratification. Plaintiff has not submitted any evidence showing General Council authorized the alleged sexual abuse, or that it had any knowledge of the subject abuse prior to this lawsuit such that it could have ratified it. (See C.R. v. Tenet Healthcare Corp., supra, 169 Cal.App.4th at pp. 1110-1111 [ratification]; see also Pl. Resp. to Def. SSMF Nos. 32-34 [undisputed], 83-84 [undisputed as to when defendant first learned of the abuse].) 4th & 5th causes of action for negligence and negligent supervision. General Council has met its initial burden to show the fourth and fifth causes of action for negligence and negligent supervision have no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at pp. 850-851; Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 213 (Brown) [elements].) General Council has demonstrated that it did not have a “special relationship” wither either plaintiff or the perpetrator, and therefore did not owe a duty to plaintiff. (See Brown, supra, 11 Cal.5th at pp. 209, 214-216 [generally, one owes no duty to control the conduct of another, nor to warn those endangered by such conduct; exceptions to this general rule includes the “special relationship” exception]; id. at pp. 215-216 [“special relationship” defined]; Regents of University of California v. Superior Court (2018) 4 Cal.5th 607, 619-621 [same; “common features” of a special relationship]; Barenborg v. Sigma Alpha Epsilon Fraternity (2019) 33 Cal.App.5th 70, 78.) Again, although General Council had a division called “Royal Rangers” that developed curriculum and related resources that were available to the local churches to whatever extent a church decided to utilize them (Def. SSMF No. 21)—its evidence shows it had absolutely no oversight, control, or other authority over any
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		Royal Rangers groups/programs at any church, including the Royal Rangers program at Walnut Valley. "General Council had no role in any decisions of Walnut Valley ... to hire, maintain, supervise or oversee any employment or volunteer activities of Darryl, if any," and Walnut Valley was not subject to General Council's control with respect to any such decisions. (Def. SSMF Nos. 29, 31.) Indeed, its Constitution and Bylaws prohibited it from interfering with any such operations. (Def. SSMF No. 30.) General Council's evidence also shows that the local church properties, including any Royal Rangers facilities or camps, and the properties where the alleged abuse took place, were not owned, controlled, or maintained by the General Council, but rather by the local church or some other entity. (See Def. SSMF Nos. 1-17, 20-31; Kesner Decl. ¶¶ 4, 6-15, 17-23, 27-30.) This is sufficient to show that General Council lacked any control over Walnut Valley's Royal Rangers program and thus was not in a unique position to protect participants such as plaintiff from the risk of harm. To find a special relationship exists, the harm to be prevented must be one the defendant is in a position to protect against. (Barenborg, supra, 33 Cal.App.5th at p. 78.) General Council's evidence shows it had no such role or ability. (See Def. SSMF No. 29-31.) "Where the defendant has neither performed an act that increases the risk of injury to the plaintiff nor sits in a relation to the parties that creates an affirmative duty to protect the plaintiff from harm, ... our cases have uniformly held the defendant owes no legal duty to the plaintiff." (Brown, supra, 11 Cal.5th at pp. 216, 222.) Plaintiff has failed to meet his burden to produce evidence demonstrating a triable issue of material fact on this issue. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden]; see Aguilar, supra, 25 Cal.4th at pp. 850-851.) Plaintiff has not submitted any evidence suggesting General Council had any oversight, control, or authority over the Royal Rangers program at Walnut Valley or any
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		other church. Instead, plaintiff has ignored the distinction between General Council's Royal Rangers division, which merely produces curriculum and related resources, from the Royal Ranger groups/programs that the churches implement and run, to conclude that "Royal Rangers was a subdivision within General Council's organizational structure" and "therefore members of the Royal Rangers [were] also members of the Defendant." (See, e.g., Pl. Resp. to Def. SSMF Nos. 214, 216-221, 226, 228.) As discussed, the only evidence plaintiff cites in support of this assertion consists of certain portions of Mr. Kesler's deposition transcript, which does not reveal any triable issues and is entirely consistent with defendant's version of the facts. (See West Decl. at Ex. 1; see also Kesler Decl. ¶¶ 4-30.) Plaintiff also notes that "General Council ... maintained records for affiliated churches and received Annual Church Ministry Reports showing that Walnut Valley operated a Royal Rangers program." (See Opp. at p. 12, citing Pl. Addl. MF Nos. 15-18.) This does not, however, suggest that General Council oversaw, controlled, or had any authority over Walnut Valley's operations or its Royal Rangers program. Indeed, Mr. Kesler's deposition testimony shows that consistent with its Constitution and Bylaws providing that the individual churches are self-governing, sovereign, and autonomous—the General Council did not require its affiliated churches to provide or maintain "Annual Church Ministry Reports" (ACMRs) or any other documentation beyond their initial affiliation form when the church opens/becomes affiliated with the General Council; that the ACMRs were only voluntary; and that the ACMRs simply provided basic information about "the number of salvations..., baptisms, membership[s]," and "what kind of ministries the church does," as "kind of a way of ... gathering statistics." (West Decl. at Ex. 1 [Kesler Depo. pp. 12:4-15, 14:1-15:17, 26:1-7].) Therefore, the mere fact that General Council may have had some ACMRs for Walnut Valley does not
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		somehow show it had any control over the church or its operations. Finally, plaintiff again claims that "Darryl was a volunteer of the Royal Rangers program which is not a separate legal entity, but a division of the Royal Rangers," citing to "Defendant's Ex. C, SPROG No. 33"—but again, there is no such "SPROG No. 33." (See Pl. Resp. to Def. SSMF Nos. 229-232; see also Sikkema Decl. at Ex. C; Champlin, <i>supra</i>, 92 Cal.App.5th at p. 226 [opposition separate statements must cite to facts and evidence for the evidence to be considered by the court].) Plaintiff has therefore failed to meet his shifted burden to produce evidence demonstrating a triable issue of material fact as to the existence of a duty. 3rd & 6th causes of action, sexual harassment and violation of civil rights. On 4/18/25, the court sustained General Council's demurrer to first amended complaint (FAC) with respect to the third and sixth causes of action for sexual harassment and violation of civil rights with 10 days leave to amend, and plaintiff never amended these claims. The time to amend has long since passed and General Council has now successfully moved for summary judgment on the FAC. As such, both the third and sixth causes of action are hereby dismissed with prejudice. (See Code Civ. Proc., § 581, subd. (d) ["Except as otherwise provided in subdivision (e), the court shall dismiss the complaint, or any cause of action asserted in it, in its entirety or as to any defendant, with prejudice, when upon the trial and before the final submission of the case, the plaintiff abandons it."]; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:144.) General Council shall give notice.
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